

AI Legal Document Analysis

Summary:

This legal notice, dated February 15, 2020, is served to Mr. Vishal Gondal, Founder of GOQii Technologies Pvt. Ltd., on behalf of Mr. Sarthak Mishra. Mr. Mishra, an avid player of online real money skill-based games like Rummy and Poker, alleges that Mr. Gondal has defamed him and the gaming community. Mr. Gondal's public statements and articles on social media and websites, including "In the End, House always Wins" (Jan 11, 2021), have belittled these games as gambling, addiction, and a menace to society, causing reputational damage to Mr. Mishra. The notice asserts that these games are legally recognized as 'games of skill' by the Supreme Court of India. It demands damages of Rs. 5,00,000 and an unconditional apology within 15 days, threatening civil and criminal defamation proceedings under the Indian Penal Code and Information Technology Act.

Parties:

Sarthak Mishra, S.K. Mishra, Advocate Satish Shrivastava, Vishal Gondal, GOQii Technologies Pvt. Ltd., Supreme Court of India, Cybercrime Investigation Cell, Medianama, Players of online skill-based games

Date/Time:

Date of Legal Notice: February 15, 2020

Date of article "In the End, House always Wins" on Medianama: January 11, 2021

Date of tweet: January 30, 2021

Date of retweet: February 1, 2021

Duration client has been playing skill-based games: Over 10 years

Timeframe for compliance and payment of damages: 15 days from receipt of notice

Money/Penalties:

Damages sought for client: Rs. 5,00,000/- (Rupees Five Lakh only)

Legal charges and cost of notice: Rs. 50,000/-

Obligations:

Vishal Gondal is obligated to retract his false statements, pay Rs. 5,00,000/- in damages to Sarthak Mishra, issue an unconditional apology on his social media platforms (including Twitter), assure not to engage in similar narratives in the future, and pay Rs. 50,000/- as legal charges. All these actions must be completed within 15 days of receiving the legal notice.

Risks:

- **Defamation Liability:** Vishal Gondal is liable for defamation under Sections 499-502 of the Indian Penal Code, 1860, and cyber defamation under Section 67 of the Information Technology Act, 2000, as per Indian law.
- **Financial Liability:** Vishal Gondal faces liability for Rs. 5,00,000/- in damages to the client and Rs. 50,000/- in legal costs if he fails to comply with the notice, as per Indian law.

- **Unfair Trade Practices:** Vishal Gondal's actions may constitute disparagement and unfair trade practices under Intellectual Property Laws, as per Indian law.
- **Criminal Proceedings:** The client reserves the right to initiate criminal proceedings by filing complaints with the Cybercrime Investigation Cell and local police, as per Indian law.

Suggestion:

Mr. Gondal should immediately consult with legal counsel to review the allegations and the legal precedents cited by the Supreme Court regarding 'games of skill'. Prompt compliance with the demands for retraction, apology, and damages within the stipulated 15 days could mitigate further civil and criminal legal action. Ignoring this notice could lead to significant financial penalties and reputational harm.